THIS DOCUMENT PREPARED BY,
AND AFTER RECORDING RETURN
TO:

Janet M. Johnson Schiff
Hardin LLP
6600 Sears Tower
233 South Wacker Drive
Chicago, Illinois 60606

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SHORT FORM AND MEMORANDUM OF GROUND LEASE

This Short Form and Memorandum of Ground Lease ("Short Form of Lease") is made as of December 1, 2007, by and between CHICAGO TITLE LAND TRUST COMPANY, not personally, but solely as Trustee under Trust Agreement dated as of December 1, 2007, and known as Trust No. 1114334, as Lessor, and NORTH SHORE ICE ARENA, LLC, an Illinois limited liability company, as Lessee.

1. Leased Premises. Upon and subject to the terms and conditions of that certain Ground Lease for Real Estate Parcel EC-2C dated as of December 1, 2007 ("Lease"), by and between Lessor and Lessee, to which reference is hereby made for the full terms and conditions thereof, Lessor has demised and leased and hereby demises and leases to Lessee, and Lessee has taken and hired and hereby takes and hires from Lessor, that certain tract of land located in unincorporated Cook County, Illinois legally described in Exhibit A attached hereto and made a part hereof, subject to the Permitted Exceptions ("Premises"). The Premises are depicted on the reduced copy of the Plat of Survey prepared by V3 Consultants Ltd., dated October 25, 2007 attached hereto as Exhibit B.

2. Lease Term. The Term of the Lease is for sixty (60) years, seven (7) months and four (4) days, commencing on January 28, 2008, and ending on August 31, 2068, unless sooner terminated on a date ("Termination Date") in the manner and as provided in the Lease.

3. Other Lease Provisions. Among the other terms and conditions contained in the Lease, the Lease provides:

(a) At all times during the Term of the Lease, the Premises shall be used by Lessee and any other occupant, including Tenants, for the Permitted Use specified in the Lease.

(b) Lessee has covenanted to construct and develop on the Premises to be completed consistent with Final Plans and Specifications to be approved by Lessor as contemplated in the Lease (which building, or buildings, together with any renewals or replacements thereof, additions thereto and substitutions therefor are herein referred to as the "Building" or "Buildings"), and all other on-site and off-site improvements appurtenant thereto or required in connection therewith (which Building or Buildings and all other improvements, including any Added Components, together with any renewals or replacements thereof, Changes and Alterations or Major Changes thereto, additions thereto and substitutions therefor are herein referred to as the "Improvements") in accordance with certain site plans, architectural renderings and other Submittals approved by Lessor in accordance with the provisions of the Lease.

(c) Lessee shall, upon the Expiration Date or the Termination Date, whichever shall first occur, surrender the Premises to Lessor in good order, condition and repair (except for ordinary wear and tear and for such damage by Casualty or taking by a Condemnation Proceeding that, in either case, Lessee is not required under the terms of the Lease to restore or repair, in which case the condition upon surrender shall be as provided elsewhere in the Lease), free and clear of all tenancies and occupancies (other than those specifically permitted by the Lease) and free of all liens, encumbrances or restrictions other than those permitted pursuant to the Lease, including, without limitation, any Tenant Leases permitted pursuant to Section 9.2 of the Lease for which Lessor has entered into Non-Disturbance Agreements and whose Tenant Lease terms have not yet expired) and free of all liens, encumbrances or restrictions other than those set forth in Exhibit B attached to the Lease, except that for purposes of such surrender no liens, encumbrances or restrictions created or suffered by Lessee shall be permitted unless the same have been specifically joined in by Lessor during the Term of this Lease as exceptions binding on Lessor's Estate upon the expiration or termination of this Lease. Notwithstanding the foregoing, if the Lease is terminated prior to the Expiration Date or the Termination Date, by agreement, by reason of an Event of Default by Lessee or otherwise pursuant to its terms, Lessee shall not be obligated to evict or otherwise cause any Tenant whose Tenant Lease has not yet expired or been terminated by Lessee to vacate the portion of the Premises

leased to such Tenant. However, nothing contained in the foregoing sentence or in any Non-Disturbance Agreement entered into by Lessor with any Tenant or in any Tenant Lease shall be construed as an agreement on the part of Lessor to accept the tenancy of any Tenant whose Tenant Lease term expired prior to the expiration of the Term of the Lease or as to which Lessor has not entered into any Non- Disturbance Agreement.

(d) At all times during the Term of this Lease, the Buildings and all other Improvements comprising the Project (exclusive of water, sanitary sewer or storm sewer trunk lines, mains and laterals and other Off-Site Improvements, On-Site Improvements or Public Improvements to be dedicated to and accepted by any Governmental Authority, title to which shall remain in Lessor or Lessee, depending on which party constructs them, but only until accepted by such Governmental Authority), the Buildings and all other Improvements comprising the Project (which may consist of a separate Building or Buildings or other Improvements constructed by a Tenant under a Tenant Lease) shall, whether or not affixed to the Land, be and remain the property of Lessee or the Tenant constructing the same pursuant to a Tenant Lease (depending on the terms of the Tenant Lease), subject always to the terms of the Lease or such Tenant's Tenant Lease. Notwithstanding the foregoing, upon the first to occur of the Expiration

Date or the Termination Date, if earlier, title to the Buildings and all other Improvements (including any On-Site Improvements, Off-Site Improvements or Public Improvements constructed by Lessee at any time during the Term and not previously dedicated to and accepted by any Governmental Authority and all Tenant-owned Buildings or other Improvements) shall automatically vest in the then Lessor without any act or the recording of any instrument on the part of Lessor or Lessee or any Tenant.

(e) Prior to completion of the Building and other Improvements requested to be constructed by Lessee pursuant to Article 5 of the Lease as part of the Initial Project, neither the Lease nor the leasehold estate thereby created shall under any circumstance, whether voluntary or involuntary, or by operation of law, be assigned or transferred by Lessee without in each case first obtaining the prior written consent of Lessor (except as otherwise provided in paragraph 3(f) of this Short Form of Lease or in Section 9.1.1 of the Lease with respect to certain assignments and transfers to a Permitted Assignee or by assignment or transfer in lieu of foreclosure of any such Leasehold Mortgage), and as otherwise provided in the Lease. After the Initial Project has been completed in accordance with the provisions of Article 5 and Article 9 of the Lease, the consent of Lessor to an assignment or transfer of

the Lease and the leasehold estate created thereby shall not be required, except in certain limited circumstances as set forth in the Lease, but the initial Lessee named in this Short Form of Lease shall not be released from its obligations under the Lease except as provided in Section 9.1.3 of the Lease.

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The making of a Leasehold Mortgage shall not be deemed to constitute an assignment or transfer of the Lease or the leasehold estate created thereby, nor shall any Leasehold Mortgagee (as defined in the Lease), as such, be deemed an assignee or transferee of the Lease or of the leasehold estate created thereby so as to require the Leasehold Mortgagee, as such, to assume the performance of any of the terms, conditions, agreements and obligations on the part of Lessee to be performed or met thereunder. In addition, any sale of Lessee's interest in the Lease and of the leasehold estate created thereby in any proceedings for the foreclosure of any Leasehold Mortgage, or the assignment or transfer of the Lease and of the leasehold estate created thereby under any instrument of assignment or transfer in lieu of the foreclosure of any Leasehold Mortgage, shall not deemed to be an assignment or transfer within the meaning of paragraph 3(e) of this Short Form of Lease or Sections 9.1.2 or 9.1.3 of the Lease for which Lessor's consent shall be required, but the assignee or transferee in any such assignment or transfer shall be deemed to have assumed the performance of all of the terms, covenants, conditions, agreements and obligations on the part of Lessee to be performed thereunder from and after the date on which the Leasehold Mortgagee or someone claiming by, through or under the Leasehold has succeeded to Lessee's rights created pursuant to the Lease.

4.

Capitalized Terms. All capitalized terms not defined in this Short Form of Lease shall have the meanings given to them in the Lease. To the extent of any conflict between this Short Form of Lease and the terms of the Lease, the Lease shall control.

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5.

No Merger. The fee title of Lessor in and to the Land and Lessee's leasehold estate in the Premises and ownership of the Improvements shall not merge but shall always be kept separate and distinct, notwithstanding the fact that the same Person may acquire, own or hold, directly or indirectly, such estates or interests, whether by purchase or otherwise. No such merger shall occur unless and until Lessor, Lessee, each Leasehold Mortgagee, each Fee Mortgagee, and all other Persons holding (i) the rights and interests created by this Lease, (ii) the ownership, leasehold or other rights or interests in all Improvements and all *of* the Premises, and (iii) any lien on any of the foregoing as a Mortgagee shall join in a written instrument expressly effecting such merger.

6. Trustee Exculpation. This Short Form of Lease is executed by CHICAGO TITLE LAND TRUST COMPANY, not personally, but solely as Trustee under a Trust Agreement dated December 1, 2007, and known as Trust No. 1114334, solely in the exercise of the power and authority conferred upon and vested in said Trustee in its capacity as such Trustee (and said Trustee hereby warrants that it possesses full power and authority to execute this instrument), and it is expressly understood and agreed that nothing contained in this Short Form of Lease or the Lease shall be construed as creating any liability whatsoever against said Trustee personally and in particular, without limiting the

generality of the foregoing, there shall be no personal liability to comply with the terms of this Short Form of Lease or the Lease, to pay any indebtedness accruing hereunder or thereunder or to perform any covenant, either express or implied, herein or therein contained, or to keep, preserve or sequester any property of said Trust, and that all personal liability of said Trustee of every sort, if any, is hereby expressly waived by every person now or hereafter claiming any right or security under this Short Form of Lease or the Lease; and that so far as said Trustee is concerned the owner of any indebtedness or liability accruing hereunder or thereunder shall look solely to the Premises leased pursuant to this Short Form of Lease and the Lease, or the Project, for the payment thereof. It is further understood and agreed that said Trustee has no agents or employees and merely holds naked title to the Premises described in this Short Form of Lease and the Lease; that said Trustee has no control over, or under this Short Form of Lease or the Lease, and assumes no responsibility for (a) the management or control of such Premises or the Project, (b) the upkeep, inspection, maintenance or repair of such Premises or the Project, (c) the collection of rents or rental from such Premises or the Project, or (d) the conduct of any business which is carried on upon such Premises or the Project. It is hereby agreed that said Trustee shall be permitted to attach the form of exculpation customarily used by it to all documents, agreements, instruments, or other writings executed by it.

[Signature Pages Follow]

WITNESS the due execution of this Short Form of Lease by Lessor as of the day and year first above written.

LESSOR:

COPY

CHICAGO TITLE **LAND** TRUST **COMPANY**,
not personally but as **Trustee, as** aforesaid

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STATE OF **ILLINOIS**
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ACKNOWLEDGMENT

COUNTY OF **COOK**

OLERN J. RICHER
TRUST OFFICER.
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LAND TRUST COMPANY, not personally**, but solely as Trustee** under **a Trust** Agreement **dated** December **1,** 2007**, and** known **as Trust No. 1114334, who** is personally **known to** me to **be the same person whose name is subscribed** to **the** foregoing instrument as **such** TRUST OFFICER **Eresident, appeared before me this day in person and**

acknowledged that he/she signed and delivered **said** instrument as his/her own **free and voluntary act** and **as the free and** voluntary act of **said Bank,** as Trustee as aforesaid**, for** the uses **and purposes** therein set forth.

GIVEN under **my hand** and **notarial seal, this day** of December, 2007

Grace

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Notary Public

My commission expires:

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*"OFFICIAL **SEAL**"*

GRACE MARIN

NOTARY PUBLIC STATE OF ILLINOIS

My Commission Expires

03/09/2009

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WITNESS the due execution **of this** Short Form of Lease **by** Lessee as **of the day** and **year first above written**.

LESSEE:

NORTH **SHORE ICE** ARENA, LLC**, an** Illinois **limited liability** company

By: Wilmette Hockey Association**, Inc.,** an Illinois not-**for-profit corporation, sole** member

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Attest: Printed Name:

Title:

ACKNOWLEDGMENT

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This instrument **was acknowledged before me on December** 20 **,** 2007, **by** Alan 1 Roth

as the Vice Pies, and respectively**, of Wilmette** Hockey Association**, Inc.**, **an Illinois not-for-profit** corporation, sole member **of NORTH** SHORE ICE ARENA, **LLC,** an **Illinois** limited **liability company.**

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6tary Public

My commission expires:

"OFFICIAL SEAL"
JOSEPHINE SIMON Notary Public, State of Illinois My Commission Expires May 1, 2010

Exhibit A

Legal Description of the Premises

EC-2C

PART OF LOT EC-2 IN TECHNY PARCELS EC-1 AND EC-2, BEING A SUBDIVISION OF PART OF THE WEST HALF OF SECTION 14, AND PART OF THE SOUTHEAST QUARTER OF SECTION 15, ALL IN TOWNSHIP 42 NORTH, RANGE 12 EAST OF THE THIRD PRINCIPAL MERIDIAN, ACCORDING TO THE PLAT THEREOF RECORDED FEBRUARY 27, 2004 AS DOCUMENT NUMBER 0405844049 DESCRIBED AS FOLLOWS:

COMMENCING AT THE SOUTHWEST CORNER OF SAID LOT EC-2; THENCE NORTHERLY ALONG THE WESTERLY LINE OF SAID LOT EC-2 THE FOLLOWING FIVE (5) COURSES AND DISTANCES: 1) NORTH 41 DEGREES 07 MINUTES 39 SECONDS WEST, 115.77 FEET; 2) NORTH 89 DEGREES 55 MINUTES 05 SECONDS WEST, 211.02 FEET; 3) NORTH 26 DEGREES 54 MINUTES 49 SECONDS WEST, 102.88 FEET; 4) NORTH 37 DEGREES 42 MINUTES 01 SECONDS EAST, 173.60 FEET; 5) NORTH 26 DEGREES 07 MINUTES 43 SECONDS WEST, 687.48 FEET FOR THE PLACE OF BEGINNING; THENCE CONTINUING NORTHERLY ALONG THE WESTERLY LINE OF SAID LOT EC-2 THE FOLLOWING THREE (3) COURSES AND DISTANCES: 1) NORTH 26 DEGREES 07 MINUTES 43 SECONDS WEST, 36.58 FEET; 2) NORTH 42 DEGREES 59 MINUTES

46 SECONDS WEST, 402.42 FEET; 3) NORTH 81 DEGREES 38 MINUTES 35 SECONDS WEST, 102.67 FEET; THENCE NORTH 56 DEGREES 07 MINUTES 43 SECONDS EAST, 594.75 FEET TO THE EASTERLY LINE OF SAID LOT EC- 2, SAID LINE ALSO BEING THE WESTERLY LINE OF HERETOFORE DEDICATED FOUNDERS DRIVE; THENCE SOUTHERLY ALONG THE EASTERLY LINE OF SAID LOT EC-2 THE FOLLOWING TWO (2) COURSES AND DISTANCES: 1) ALONG AN ARC OF A CURVE CONCAVE TO THE EAST AND NONTANGENT TO THE LAST DESCRIBED LINE, HAVING A RADIUS OF 780.00 FEET, HAVING A CHORD BEARING OF SOUTH 22 DEGREES 31 MINUTES 41 SECONDS EAST, 401.93 FEET TO A POINT OF REVERSE CURVATURE; 2) ALONG AN ARC OF A CURVE CONCAVE TO THE SOUTHWEST, HAVING A RADIUS OF 2540.00 FEET, HAVING A CHORD BEARING OF SOUTH 36 DEGREES 00 MINUTES 59 SECONDS EAST, 112.94 FEET; THENCE SOUTH 56 DEGREES 07 MINUTES 43 SECONDS WEST ALONG A LINE NONTANGENT TO THE LAST DESCRIBED CURVE, 385.88 FEET TO THE PLACE OF BEGINNING, IN COOK COUNTY, ILLINOIS.

PIN:

Address:

04-14-305-001-0000 (portion only)

5.0+ acres of vacant land on Founders Drive, north of Kamp Drive and south of Techny Road, Northbrook, Illinois.

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Exhibit B

Depiction of Premises

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PERUMONT UND **SORTIUM, TASKUDE** A MOUW DRIVECO TO DIE NEZADE OF **MORTHBROOK,** JER SUGGEVEDRS IND FENOWS**, 30 DES,** WAPEST, **MEMA,** MPLSE AYOL **MAINE** DE **PRANION** DE PLACE **WAZOR** Aelel, Donor Sora SWÁRT **SOVER** PUBLIC BOERG, **STREET** LIGHTING AND ORANGE LIPON, VIDOS, ALONG THE **ADHOES** SHE MILA DORSAKIS NAGLAZE SERIES Ensoory Mauh uhuUZES EARNEY ON TE BERÉRINN. **AC** Darts **Posong** I NE PIE * DI **ME** IN POOLE **BATES,** SVINÉS ERG AS **THONI** DI PUE OF FIRE, MAT OF SUBONDON OF SEHMET **PARODA** CO-**1** #HO EX-**3 RECORDEN** ME ROGEMENT SHOSHOVE PLATIER KERESÉS)

Engineers

1925 M083 Avanus, Sutte 100 **Wandeldige**, IL.
80517 Scientists 690.724.9200 volo
833,724.07384f
ax

Surveyors
SGD.COM

NORTH SHORE KOE ARENA,
LLO 2.G. BOX 4737 WINETTE 1. ADOSI

REVISIONS

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STATE OF
KIBICES

SURVEYOR'S CERTIFICATE

COUNTY OF **DUPACE** :

TO KÓRY **THONG** ICE ARONA,
LLC

CICIO BILE MISURANCE
GIMFAKY

PAT IS SO TERREY NAF DAS SAF OFF PLAT AND **THE** SURVEY da bench at $ BARA HENG BLADE IN **AISCURSANGE** WIN THE "MAN STANOWIÓ DEIAS, RECKARENDUS 199 ALTKJACEM LAND DALE KORVÉVET JOINTLY ESTABLISHED AND **ADOPTED** ET 2LTA KHÔ HIPS IN 2015, **AND** WALUDES ITEMS 1, 2, 3, 4, 3, **2** ., 1, 13(6), 103, 12, 15 **AND** 15. OF TAKE & SCREST, PORULART TO THE **MODULARY STANDARGE** AS ADOPTED BY MEA AND HIPS AND H EFFICE ON THE DATE OF THIS CONCATION, UNDERSIGNED PURDER GERAFEDS THAT 24 MY PROFESSIONAL OPYCOL ÁS A LAND SURVEYA REGISTERED IN THE STATE OF MANOR, DE RIKARVE POSITIONAL ACCURACY OF HIS SAVET DOES NOT **INCEZD** THAT WICH IS SPERRED **THERERS**.

GÖVDE UNDOR MY HAND AND SEAL, DIS. „353 DAY OF SEINE..... AR.ADRZ...

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2007.

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2009).

ALTA/ACSM **LAND** TITLE SURVEY

PART OF TECHNY LOT EG-2, NORTHBROOK, ILLINOIS

|TRE KAIN: ALTODO1.CE-20|| **ERAN** SYALJ **OKOKED** ST: CUBE: **DRAFTING** DOMPLIZED: 10-25-**DY**

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